

CHAPTER III

GENERAL CHARACTERISTICS

LOOKING back on the series of writings we have so briefly surveyed we may seek to determine their pattern. This will emerge if we bear in mind the fact that the principal works are without doubt the *Commentary* on the Mishnah, the *Code*, and the *Guide*; and around these may be grouped all of Maimonides' other writings, whether the lost Talmudic Commentaries, his digest of decisions and letters on points of Rabbinical law and learning, or his minor philosophical treatises. The *Introduction to Logic*, the small treatise on the Calendar, the medical writings, the letters and other occasional pieces which cover the whole period of his literary career, serve only to bring his main achievements in higher relief. *Commentary*, *Code*, *Guide*—these (each of them, as we saw, the labour of some ten years) stand out as his central life work.

The fact is significant and their order is suggestive: first *Commentary*, then *Code*, and then *Guide*. The *Commentary* is a work of scholarship rooted in the past; the *Code* is a work of systematization and lays down rules for the present; the *Guide* is a work of interpretation which seeks a basis for the religious life which is beyond time. The progression is definite. *Commentary* not only precedes but, as it were, gives way to *Code*; and as *Commentary* gives way to *Code*, so does *Code* to *Guide*.

Not that *Commentary*, *Code* and *Guide* are ever completely distinct from one another. In a sense they interpenetrate. The *Commentary*, as we have seen, contains philosophical disquisitions, the *Guide* a section on the reasons for the commandments; and both exposition and philosophy appear explicitly in the great central work, the *Code*. Yet there is a difference of emphasis. The interest shifts. As each work is finished its incompleteness becomes manifest. It is the inadequacy of the *Commentary* which necessitates the *Code*, the inadequacy of the *Code*, the *Guide*.

We may, indeed, go further. This development would seem to be not of the individual, Maimonides, but of the literature itself and of the culture of which it is the expression. The metamorphosis is, as it were, a biological one in which the individual developing organism patterns in its progress the development of the whole race. The inchoateness of national traditions settles down slowly, and at this stage it is Commentary which is all-important; but the exposition which is Commentary brings us eventually and irrevocably to the norm represented by Code. Yet Code, even if it be made to include principles, is still code, a dogmatic statement of decisions; and if it is to survive, calls imperatively for the philosophical justification which is only given in a Guide.

And the reverse too is true. Philosophy needs the concrete regulation which is Code; and both Code and Guide need the historical basis which is represented by Commentary. Men are not made moral by Act of Parliament; they need to be taught the "why" of their morality. But their morality should be *theirs*, based firmly on "the rock whence they were hewn and the hole of the pit whence they were digged."

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Maimonides' goal was the exposition of Judaism for his own day. Firmly rooted in an historic culture he yet realized that history is not enough: religion is not identical with scholarship. On the other hand, mechanical acceptance of a code of conduct is not enough: morality is not identical with custom. He was thus forced to turn to philosophy which alone could make a proper use of scholarship and with its help justify customary behaviour. The *Guide* reveals explicitly and in their completeness the rational foundations on which both *Commentary* and *Code* are ultimately based.

Maimonides' philosophizing is thus restricted, and we have here the reason for the fact that the *Guide* is not a general treatise on metaphysics. It is definitely a work of apologetics, but apologetics of a very peculiar and interesting kind. In its method it is very like Butler's *Analogy of Religion* and it may be added that it was not unlike it in its consequences too. But

this point demands special attention and we shall turn to it immediately, only pausing a moment to enquire what kind of man Maimonides was.

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Of the man Maimonides it must be confessed we know little. Of the formative period of his life, the years from birth to the age of twenty-five when he left Spain, we know practically nothing. Of personal details throughout the rest of his life we have a few biographical statements of his own and some apocryphal stories. We know that he had a great reputation as a healer, and some Arabic verses survive from the pen of a contemporary, a Moslem judge, in which it is said that if the moon had consulted Maimonides, he would have cured it of its spots! (To this very day serious illness in the Jewish quarter of Cairo is treated by carrying the patient to the old synagogue traditionally associated with Maimonides, and leaving him to sleep there for a night or two.) Some traits in his character can be deduced from his writings. We know, for example, that he disapproved strongly of music (letter 370) and looked upon poetry as frivolous. An incidental sermon on speech (Aboth i, 16) suggests that his general outlook inclined to the severe. Bodily enjoyment, especially when derived from the sense of touch, is in his eyes unworthy. To judge from all this he would seem to have been a puritanical moralist in the bad sense of both words.

Yet this judgment would be wrong, or at least incomplete. We have already seen the human note in his letter of encouragement to the Jews of Yemen, and throughout his correspondence we find signs of tender relations to his family, an affectionate attitude to his pupils, and a magnanimous forbearance to his opponents. These traits of character force themselves on the attention, surprising enough, in the *Code* itself. The ordinances of the Pentateuch, he observes *à propos* of the Sabbath law, were not enacted "in order to spite humanity; they are mercy and justice and peace"; and he quotes in this connection with approval the Talmudic dictum on the verse: Ye shall therefore keep my statutes and my

judgments, which if a man do he shall live by them—"he should *live*, not die, by them" (*Code*, Sabbath, ii, 3). And so he specifically condemns the ascetic way of life¹ and takes every opportunity of stressing joy² in the religious service of God; just as in an earlier work he recognizes the need of recreation, and at least so far is prepared to approve of the arts: "as the body becomes exhausted from its labour and recovers by rest and refreshment, so it is necessary for the mind to have relaxation by gazing upon pictures and other beautiful objects in order that its weariness may be dispelled" (*Eight Chapters*, v).

In the same way the purely legal side of the *Code*, as we are told by a recent authority³, is remarkable for its insistence on *intention* rather than on the mere act, and we are met everywhere by a wisdom which combines learning with shrewdness and a keen grasp of the human issues at stake. What could be better—in a code of law!—than the following, for example:

"All families may be considered fit to be married into, and one may take a wife from them without question. Nevertheless, if you see two families which are always quarrelling with one another, or if you see a family which is always full of dissension and strife, or if you see a man who is always making trouble and showing insolence, avoid them and do not intermarry with them, for these are signs of unfitness. So too if a man is always finding fault with other people on grounds of family or personal blemish (for the faults we see in others are our own); or if he is brazen and cruel and misanthropic and uncharitable—such people should be avoided especially, as the signs of the holy people which is the true Israel are modesty and mercy and charity." (*Code*, Forbidden Relations, xiv, 19)

But the fact is that Maimonides was tired. He was constantly ailing, exhausted by his prolonged unhappy wanderings in

¹ See excerpt quoted below, p. 106

² cf. e.g. below, p. 109.

³ A. Gulak in *Tarbiz*, 1935, p. 385 (141) ff. Maimonides' views on economics are discussed in the pioneer essay of S. W. Baron in *Essays on Maimonides*, 1941.

early life and by his practical and intellectual labours; and his meagre physical powers were hardly enough to enable him to carry out even routine professional duties. An oft-quoted letter, written in the last years of his life, is so interesting as to be worth quoting again¹:

"Now God knows that in order to write this to you, I have escaped to a secluded spot, where people would not think to find me, sometimes leaning for support against the wall, sometimes lying down on account of my excessive weakness, for I have grown old and feeble.

"But with respect to your wish to come here to me, I cannot but say how greatly your visit would delight me, for I truly long to commune with you, and would anticipate our meeting with even greater joy than you. Yet I must advise you not to expose yourself to the perils of the voyage, for beyond seeing me, and my doing all I could to honour you, you would not derive any advantage from your visit. Do not expect to be able to confer with me on any scientific subject for even one hour either by day or by night, for the following is my daily occupation:

"I dwell at Misr (Fostat) and the Sultan resides at Kahira (Cairo); these two places are two Sabbath days' journey (about one mile and a half) distant from each other. My duties to the Sultan are very heavy. I am obliged to visit him every day, early in the morning; and when he or any of his children, or any of the inmates of his harem, are indisposed, I dare not quit Kahira, but must stay during the greater part of the day in the palace. It also frequently happens that one or two of the royal officers falls sick, and I must attend to their healing. Hence, as a rule, I repair to Kahira very early in the day, and even if nothing unusual happens, I do not return to Misr until the afternoon. Then I am almost dying with hunger. I find the ante-chambers filled with people, both Jews and Gentiles, nobles and common people, judges and bailiffs, friends and foes—a mixed multitude, who await the time of my return.

"I dismount from my animal, wash my hands, go forth to my patients, and entreat them to bear with me while I partake of some slight refreshment, the only meal I take in the twenty-

¹ Translation from Yellin-Abrahams, *Maimonides*, p. 148 f.

four hours. Then I attend to my patients, write prescriptions and directions for their various ailments. Patients go in and out until nightfall, and sometimes even, I solemnly assure you, until two hours and more in the night. I converse with and prescribe for them while lying down from sheer fatigue, and when night falls I am so exhausted that I can scarcely speak.

"In consequence of this, no Israelite can have any private interview with me except on the Sabbath. On that day the whole congregation, or at least the majority of the members, come to me after the morning service, when I instruct them as to their proceedings during the whole week; we study together a little until noon, when they depart. Some of them return, and read with me after the afternoon service until evening prayers. In this manner I spend that day. I have here related to you only a part of what you would see if you were to visit me."

In these circumstances, the wonder is not that Maimonides inclined to disparage the lighter side of life, but that he managed to remain alive so long and kept the feelings of a man. That he did, and it is characteristic that even his major philosophical work, the *Guide for the Perplexed*, far from being a set treatise, was an occasional composition sent chapter by chapter to a favourite pupil, and even in its completed shape it retains personal notes of advice and encouragement which betray the teacher and friend. This curiously personal character of what is sometimes looked on as an arid piece of formal metaphysics comes out clearly in the dedicatory letter, which serves as a preface to the whole work:

MY DEAR PUPIL,

Ever since you resolved to come to me from a distant country and to study under my direction, I thought highly of your thirst for knowledge and your fondness for speculative pursuits which found expression in your poems. I refer to the time when I received your writings in prose and verse from Alexandria. I was then not yet able to test your powers of apprehension, and I thought that your desire might possibly exceed your capacity.

But when you had gone with me through a course of astronomy, after having completed the other elementary studies which are indispensable for the understanding of that science, I was still more gratified by the acuteness and quickness of your apprehension. Observing your great fondness for mathematics I let you study them more deeply, for I felt sure of your ultimate success. Afterwards, when I took you through a course of logic, I found that my great expectations of you were confirmed, and I considered you fit to receive from me an exposition of the esoteric ideas contained in the prophetic books, that you might understand them as they are understood by men of culture.

When I commenced by way of hints I noticed that you desired additional explanation, urging me to expound some metaphysical problems; to teach you the system of the Arab theologians; to tell you whether their arguments were based on logical proof; and if not, what their method was. I perceived that you had acquired some knowledge in these matters from others, and that you were perplexed and bewildered; yet you sought to find out a solution to your difficulty.

I urged you to desist from this pursuit and enjoined you to continue your studies systematically; for my object was that the truth should present itself in connected order, and that you should not hit upon it by mere chance. Whilst you studied with me I never refused to explain difficult verses in the Bible or passages in Rabbinical literature which we happened to meet.

When by the will of God we parted and you went your way, our discussions aroused in me a resolution which had long been dormant. Your absence has prompted me to compose this treatise for you and for those who are like you, however few they may be. I have divided it into chapters, each of which will be sent to you as soon as it is completed. Farewell.

This letter is not the only one which passed between Maimonides and his pupil, and the remaining correspondence which has survived, just issued in a new edition by Professor D. H. Baneth (Jerusalem 1946), shows the strength of the personal bond between them. The fragment now printed as

No. 8 is of especial interest as containing a mention of the death of a child, together with some reflections on the necessity of death in the cosmic process, and a reference to relevant chapters of the *Guide* which were on the way and which would help the pupil to an understanding. The *Guide* was no product of abstract speculation. Like its author it was bound up with the actual problems of life.

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In the coming sketch of the *Guide* this has been kept steadily in mind. The book bristles with problems, literary and philosophical. Its purpose and method of composition have given occasion for many major studies and much learned research. It has been dissected and analysed both philologically and historically and its author set in his place both longitudinally in the series of Jewish thinkers and latitudinally among his Arab and Christian contemporaries. Since the pioneer work of Munk and Joel, the devoted labours of many scholars have been given ungrudgingly to the essential task of clearing up detail.

But all this specialist investigation (a brief pointer to which will be found in the Note on Literature, below, p. 135), only serves to emphasize the importance of the eternal issues of the *Guide*. It is these therefore which it behoves us to endeavour to grasp, leaving their temporary expression as far as possible in the background.

This will be the task of the following chapters.